

24STCV02813 24STCV02813

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-06-30

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Pending before the Court is the Plaintiff's motion for an order awarding him the attorney's fees and costs incurred in this litigation under the Song-Beverly Consumer Warranty Act ("the Act"). Because the case settled, the Act entitles Plaintiff to recover his reasonable attorney's fees and costs. In the motion, Plaintiff seeks \$44,235 in attorney's fees, plus an enhancement of 1.25 times that amount, and \$1,185.24 in costs. The Court is granting the motion in part and denying it in part.

The Court is awarding Plaintiff the \$44,235 in attorney's fees sought in the motion. That figure is based on the lodestar calculation of multiplying the amount of hours that lawyers and paralegals worked on the case by their respective hourly billing rates. In the Court's view, the hourly billing rates of the lawyers and paralegals here are reasonable, and Defendant does not contend otherwise. Defendant does contend that the amount of hours that the lawyers and paralegals say they worked on the case is excessive. To support this contention, Defendant points to a number of items in the billing records attached to the Plaintiff's motion that, according to Defendant, evince an unnecessary amount of time spent on particular tasks. The Court has reviewed the items to which Defendant objects and disagrees with Defendant. The Court believes that the items in question reflect reasonable and necessary work on the litigation. The Court also disagrees with Defendant's objections to assorted items of costs in the billing records for which Plaintiff seeks to recover. The Court is awarding Plaintiff the \$1,185.24 in costs that he seeks in the motion.

The Court is declining, however, to award Plaintiff a multiplier of 1.25 times the amount of attorney's fees that the Court is awarding. A fee enhancement is unwarranted in this case.

Defendant shall pay Plaintiff the \$45,420.24 in fees and costs that the Court is awarding within 60 days of this order.